

Appendix II

Citizenship and National Identity (1990)

Until the mid eighties, history seemed to be entering that crystalline state known as *posthistoire*. This was Arnold Gehlen's term for the strange feeling that the more things change, the more they remain the same. *Rien ne va plus*—nothing really surprising can happen anymore. Locked in by systemic constraints, all the possibilities seemed to have been exhausted, all the alternatives frozen, and any remaining options drained of meaning. Since then this mood has completely changed. History is once again on the move, accelerating, even overheating. New problems are shifting the old perspectives. What is more important, new perspectives are opening up for the future, points of view that restore our ability to perceive alternative courses of action.

Three historical movements of our contemporary period, once again in flux, affect the relation between citizenship and national identity: (1) In the wake of German unification, the liberation of the East Central European states from Soviet tutelage, and the nationality conflicts breaking out across Eastern Europe, the question concerning the future of the nation-state has taken on an unexpected topicality. (2) The fact that the states of the European Community are gradually growing together, especially with the caesura that will be created when a common market is introduced in 1993, sheds light on the relation between the nation-state and democracy: the democratic processes constituted at the level of the nation-state lag hopelessly behind the economic integration taking place at a supranational level. (3) The tremendous tide of immigra-

tion from the poor regions of the East and South, with which Europe will be increasingly confronted in the coming years, lends the problem of asylum a new significance and urgency. This process exacerbates the conflict between the universalistic principles of constitutional democracy, on the one hand, and the particularistic claims to preserve the integrity of established forms of life, on the other.

These three topics offer an occasion for the conceptual clarification of some normative perspectives from which we can gain a better understanding of the complex relation between citizenship and national identity.

1 The Past and Future of the Nation-State

The events in Germany and the Eastern European states have given a new twist to a long-standing discussion in the Federal Republic about the path to a "postnational society."¹ Many German intellectuals have complained, for example, about the democratic deficits of a unification process that is implemented at the administrative and economic levels without the participation of citizens; they now find themselves accused of "postnational arrogance." This controversy over the form and tempo of political unification is fueled not only by the contrary feelings of the disputing parties but also by conceptual unclarity. One side sees the accession of the five new Länder to the Federal Republic as restoring the unity of a nation-state torn apart four decades ago. From this viewpoint, the nation represents the prepolitical unity of a community with a shared historical destiny (*Schicksalsgemeinschaft*). The other side sees political unification as restoring democracy and the rule of law in a territory where civil rights have been suspended in one form or another since 1933. From this viewpoint, what used to be West Germany was no less a nation of enfranchised citizens than is the new Federal Republic. This republican usage strips the term "nation-state" of precisely those prepolitical and ethnic-cultural connotations that have accompanied the expression in modern Europe. Dissolving the semantic connections between state citizenship and national identity honors the fact that today the classic form of the nation-state is, with the transition of the European

Community to a political union, disintegrating. This is confirmed by a glance back at its genesis in early modernity.

In modern Europe, the premodern form of *empire* that used to unite numerous peoples remained rather unstable, as shown in the cases of the Holy Roman Empire or the Russian and Ottoman empires.² A second, federal form of state emerged from the belt of Central European cities. It was above all in Switzerland that a *federation* developed that was strong enough to balance the ethnic tensions within a multicultural association of citizens. But it was only the third form, the centrally administered *territorial state*, that came to have a lasting formative effect on the structure of the European system of states. It first emerged—as in Portugal, Spain, France, England, and Sweden—from kingdoms. Later, as democratization proceeded along the lines of the French example, it developed into the *nation-state*. This state formation secured the boundary conditions under which the capitalist economic system could develop worldwide. That is, the nation-state provided the infrastructure for an administration disciplined by the rule of law, and it guaranteed a realm of individual and collective action free of state interference. Moreover—and this is what primarily interests us here—it laid the foundation for the ethnic and cultural homogeneity that made it possible, beginning in the late eighteenth century, to forge ahead with the democratization of government, albeit at the cost of excluding and oppressing minorities. Nation-state and democracy are twins born of the French Revolution. From a cultural point of view, they both stand under the shadow of nationalism.

This national consciousness is a specifically modern manifestation of cultural integration. The political consciousness of national membership arises from a dynamic that first took hold of the population after processes of economic and social modernization had torn people from their places in the social hierarchy, simultaneously mobilizing and isolating them as individuals. Nationalism is a form of consciousness that presupposes an appropriation, filtered by historiography and reflection, of cultural traditions. Originating in an educated bourgeois public, it spreads through the channels of modern mass communication. Both elements, its literary mediation and its dissemination through public media,

lend to nationalism its artificial features; its somewhat constructed character makes it naturally susceptible to manipulative misuse by political elites.

The history of the term “nation” reflects the historical genesis of the nation-state.³ For the Romans, *Natio* was the goddess of birth and origin. *Natio* refers, like *gens* and *populus* but unlike *civitas*, to peoples and tribes who were not yet organized in political associations; indeed, the Romans often used it to refer to “savage,” “barbaric,” or “pagan” peoples. In this classical usage, then, nations are communities of people of the same descent, who are integrated geographically, in the form of settlements or neighborhoods, and culturally by their common language, customs, and traditions, but who are not yet politically integrated through the organizational form of the state. This meaning of “nation” persisted through the Middle Ages and worked its way into the vernacular languages in the fifteenth century. Even Kant still wrote that “those inhabitants . . . which recognize themselves as being united into a civil whole through common descent, are called a nation (*gens*).”⁴ However, in the early-modern period a competing usage arose: the nation is the bearer of sovereignty. The estates represented the “nation” over against the “king.” Since the middle of the eighteenth century, these two meanings of “nation”—community of descent and “people of a state”—have intertwined. With the French Revolution, the “nation” became the source of state sovereignty, for example, in the thought of Emmanuel Sieyès. Each nation is now supposed to be granted the right to political self-determination. The intentional democratic community (*Willensgemeinschaft*) takes the place of the ethnic complex.

With the French Revolution, then, the meaning of “nation” was transformed from a prepolitical quantity into a constitutive feature of the political identity of the citizens of a democratic polity. At the end of the nineteenth century, the conditional relation between ascribed national identity and acquired democratic citizenship could even be reversed. Thus the gist of Ernest Renan’s famous saying, “the existence of a nation is . . . a daily plebiscite,” was already directed *against* nationalism. After 1871, Renan could rebut Germany’s claims to the Alsace by referring to the inhabitants’ French nationality only because he thought of the “nation” as a nation of citizens, and not as a community of descent. The nation

of citizens finds its identity not in ethnic and cultural commonalities but in the practice of citizens who actively exercise their rights to participation and communication. At this juncture, the republican strand of citizenship completely parts company with the idea of belonging to a prepolitical community integrated on the basis of descent, shared tradition, and common language. Viewed from this end, the initial fusion of national consciousness with republican conviction only functioned as a catalyst.

The nationalism mediated by the works of historians and romantic writers, hence by scholarship and literature, grounded a collective identity that played a *functional* role for the notion of citizenship that originated in the French Revolution. In the melting pot of national consciousness, the ascriptive features of one's origin were transformed into just so many results of a conscious appropriation of tradition. Ascribed nationality gave way to an achieved nationalism, that is, to a conscious product of one's own efforts. This nationalism was able to foster people's identification with a role that demanded a high degree of personal commitment, even to the point of self-sacrifice; in this respect, general conscription was simply the flip side of civil rights. National consciousness and republican conviction in a sense proved themselves in the willingness to fight and die for one's country. This explains the complementary relation that originally obtained between nationalism and republicanism: one became the vehicle for the emergence of the other.

However, this social-psychological connection does not mean that the two are linked at the conceptual level. National independence and collective self-assertion against foreign nations can be understood as a collective form of freedom. This national freedom does not coincide with the genuinely political freedom that citizens enjoy within a country. For this reason, the modern understanding of this republican freedom can, at a later point, cut its umbilical links to the womb of the national consciousness of freedom that originally gave it birth. The nation-state sustained a close connection between "demos" and "ethos" only briefly.⁵ Citizenship was never conceptually tied to national identity.

The concept of citizenship developed out of Rousseau's concept of self-determination. "Popular sovereignty" was initially understood as a delimitation or reversal of royal sovereignty and was

judged to rest on a contract between a people and its government. Rousseau and Kant, by contrast, did not conceive of popular sovereignty as the transfer of ruling authority from above to below or as its distribution between two contracting parties. For them, popular sovereignty signified rather the transformation of authority into *self-legislation*. A historical pact, the civil contract, is replaced here by the social contract, which functions as an abstract model for the way in which an authority legitimated only through the implementation of democratic self-legislation is *constituted*. Political authority thereby loses its character of quasi-natural violence: the *auctoritas* of the state should be purged of the remaining elements of *violentia*. According to this idea, “only the united and consenting Will of all— . . . by which each decides the same for all and all decide the same for each—can legislate.”⁶

This idea does not refer to the substantive generality of a popular will that would owe its unity to a prior homogeneity of descent or form of life. The consensus fought for and achieved in an association of free and equal persons ultimately rests only on the unity of a *procedure* to which all consent. This procedure of democratic opinion- and will-formation assumes a differentiated form in constitutions based on the rule of law. In a pluralistic society, the constitution expresses a formal consensus. The citizens want to regulate their living together according to principles that are in the equal interest of each and thus can meet with the justified assent of all. Such an association is structured by relations of mutual recognition in which each person can expect to be respected by all as free and equal. Each and every person should receive a three-fold recognition: they should receive equal protection and equal respect in their integrity as irreplaceable individuals, as members of ethnic or cultural groups, and as citizens, that is, as members of the political community. This idea of a self-determining political community has assumed a variety of concrete legal forms in the different constitutions and political systems of Western Europe and the United States.

In the language of law, though, “*Staatsbürgerschaft*,” “*citoyenneté*,” or “citizenship” referred for a long time only to nationality or membership in a state; only recently has the concept been enlarged to cover the status of citizens defined in terms of civil rights.⁷

Membership in a state assigns a particular person to a particular nation whose existence is recognized in terms of international law. Regardless of the internal organization of state authority, this definition of membership, together with the territorial demarcation of the country's borders, serves to delimit the state in social terms. In the democratic constitutional state, which understands itself as an association of free and equal persons, state membership depends on the principle of voluntariness. Here, the conventional ascriptive characteristics of domicile and birth (*jus soli* and *jus sanguinis*) by no means justify a person's being irrevocably subjected to that government's sovereign authority. These characteristics function merely as administrative criteria for attributing to citizens an assumed, implicit consent, to which the right to emigrate or to renounce one's citizenship corresponds.⁸

Today, though, the expressions "*Staatsbürgerschaft*" or "citizenship" are used not only to denote organizational membership in a state but also for the status materially defined by civil rights and duties. The Basic Law of the Federal Republic has no explicit parallel to the Swiss notion of active citizenship.⁹ However, taking Article 33, section 1, of the Basic Law as its starting point, German legal thought has expanded the package of civil rights and duties, especially the basic rights, to generate an overall status of a similar kind.¹⁰ In the republican view, citizenship has its point of reference in the problem of the legal community's self-organization, whereas its core consists in the rights of political participation and communication. Rolf Grawert, for example, conceives citizenship as "the legal institution through which the individual member of a state is given a collaborative role in the concrete matrix of state actions."¹¹ The status of citizen fixes in particular the democratic rights to which the individual can reflexively lay claim in order to *change* his material legal status.

In the philosophy of law, two contrary interpretations of this active citizenship vie with each other for pride of place. The role of the citizen is given an individualist and instrumentalist reading in the liberal tradition of natural law starting with John Locke, whereas a communitarian and ethical understanding of this role has emerged in the republican tradition of political philosophy going back to Aristotle. In the first case, citizenship is conceived

along the lines of an organizational membership that grounds a legal status. In the second case, it is modeled after a self-determining ethnic-cultural community. In the first interpretation, individuals remain outside the state. In exchange for organizational services and benefits, they make specific contributions, such as voting inputs and tax payments, to the reproduction of the state. In the second interpretation, citizens are integrated into the political community like the parts of a whole, in such a way that they can develop their personal and social identity only within the horizon of shared traditions and recognized political institutions. On the liberal reading, citizens do not differ essentially from private persons who bring their prepolitical interests to bear vis-à-vis the state apparatus. On the republican reading, citizenship is actualized solely in the collective practice of self-determination. Charles Taylor describes these two competing concepts of citizen as follows:

One [model] focuses mainly on individual rights and equal treatment, as well as a government performance which takes account of the citizen's preferences. This is what has to be secured. Citizen capacity consists mainly in the power to retrieve these rights and ensure equal treatment, as well as to influence the effective decisionmakers. . . . [T]hese institutions have an entirely instrumental significance. . . . [N]o value is put on participation in rule for its own sake. . . .

The other model, by contrast, defines participation in self-rule as of the essence of freedom, as part of what must be secured. This is . . . an essential component of citizen capacity. . . . Full participation in self-rule is seen as being able, at least part of the time, to have some part in the forming of a ruling consensus, with which one can identify along with others. To rule and be ruled in turn means that at least some of the time the governors can be "us," and not always "them."¹²

The holistic model of a community that incorporates its citizens in every aspect of their lives is in many respects inadequate for modern politics. Nevertheless, it has an advantage over the organizational model, in which isolated individuals confront a state apparatus to which they are only functionally connected by membership: the holistic model makes it clear that political autonomy is an end in itself that can be realized not by the single individual privately pursuing his own interests but only by all together in an intersubjectively shared practice. The citizen's legal status is constituted by a network of egalitarian relations of mutual recognition.

It assumes that each person can adopt the participant perspective of the first-person plural—and not just the perspective of an observer or actor oriented to his own success.

Legally guaranteed relations of recognition do not, however, reproduce themselves of their own accord. Rather, they require the cooperative efforts of a civic practice that no one can be compelled to enter into by legal norms. It is for good reason that modern coercive law does not extend to the motives and basic attitudes of its addressees. A legal duty, say, to make active use of democratic rights has something totalitarian about it. Thus the legally constituted status of citizen depends on the *supportive spirit* of a consonant background of legally noncoercible motives and attitudes of a citizenry oriented toward the common good. The republican model of citizenship reminds us that constitutionally protected institutions of freedom are worth only what a population *accustomed* to political freedom and settled in the “we” perspective of active self-determination makes of them. The legally institutionalized role of citizen must be embedded in the context of a liberal political culture. This is why the communitarians insist that citizens must “patriotically” identify with their form of life. Taylor, too, postulates a shared consciousness that arises from the identification with the consciously accepted traditions of one’s own political and cultural community: “The issue is, can our patriotism survive the marginalization of participatory self-rule? As we have seen, a patriotism is a common identification with an historical community founded on certain values. . . . But it must be one whose core values incorporate freedom.”¹³

With this, Taylor seems to contradict my thesis that there is only a historically contingent and not a conceptual connection between republicanism and nationalism. Studied more closely, however, Taylor’s remarks boil down to the statement that the universalist principles of constitutional democracy need to be somehow anchored in the political culture of each country. Constitutional principles can neither take shape in social practices nor become the driving force for the dynamic project of creating an association of free and equal persons until they are situated in the historical context of a nation of citizens in such a way that they link up with those citizens’ motives and attitudes.

As the examples of multicultural societies like Switzerland and the United States demonstrate, a political culture in which constitutional principles can take root need by no means depend on all citizens' sharing the same language or the same ethnic and cultural origins. A liberal political culture is only the common denominator for a *constitutional patriotism* (*Verfassungspatriotismus*) that heightens an awareness of both the diversity and the integrity of the different forms of life coexisting in a multicultural society. In a future Federal Republic of European States, the *same* legal principles would also have to be interpreted from the perspectives of *different* national traditions and histories. One's own tradition must in each case be appropriated from a vantage point relativized by the perspectives of other traditions, and appropriated in such a manner that it can be brought into a transnational, Western European constitutional culture. A particularist anchoring of *this kind* would not do away with one iota of the universalist meaning of popular sovereignty and human rights. The original thesis stands: democratic citizenship need not be rooted in the national identity of a people. However, regardless of the diversity of different cultural forms of life, it does require that every citizen be socialized into a common political culture.

2 Nation-State and Democracy in a Unified Europe

The political future of the European Community sheds light on the relation between citizenship and national identity in yet another respect. The concept of citizenship developed by Aristotle was, after all, originally tailored for the size of cities or city-states. The transformation of populations into nations that formed states occurred, as we have seen, under the banner of a nationalism that seemed to reconcile republican ideas with the larger dimensions of modern territorial states. It was in the political forms created by the nation-state that modern trade and commerce arose. And, like the bureaucratic state, the capitalist economy, too, developed a systemic logic of its own. The markets for goods, capital, and labor obey their own logic, independent of the intentions of human subjects. Alongside the administrative power incorporated in government bureaucracies, money has become an anonymous me-